EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 56754/14
Fariz ADIGOZALOV and Alakbar AGASIYEV
against Azerbaijan

The European Court of Human Rights (Fifth Section), sitting on 9 January 2018 as a Committee composed of:
Erik Møse, *President,*
Síofra O'Leary,
Lətif Hüseynov, *judges,*
and Anne-Marie Dougin, *Acting Deputy Section Registrar,*
Having regard to the above application lodged on 8 August 2014,
Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicants, Mr Fariz Adigozalov and Mr Alakbar Agasiyev, are Azerbaijani nationals, who were born in 1946 and 1958 respectively and live in Baku. They were represented before the Court by Mr I. Aliyev, a lawyer practising in Azerbaijan.

2. The applicants complained under Article 11 of the Convention that the refusal by the State authorities to register an association which they had founded had amounted to a violation of their right to freedom of association. They also complained that the authorities had seized the case file relating to their application from the office of Mr Aliyev, their representative, infringing their right of individual application under Article 34 of the Convention.

3. On 11 October 2016 the applicants' complaints detailed above were communicated to the Azerbaijani Government ("the Government"), who were represented by their Agent, Mr Ç. Asgarov.

4. On 6 February 2017 the Government submitted to the Registry their observations on the admissibility and merits of the application. These were

forwarded to the applicants, who were invited to submit observations in reply by 27 March 2017.

5. On 10 April 2017 the applicants' representative informed the Registry that he had been unable to get in touch with them because they did not respond to his e-mails or answer his phone calls. He nevertheless submitted observations on the admissibility and merits of the application of his own accord and asked for an additional period of fifteen days in order to continue his attempts to get in touch with the applicants and to submit their just satisfaction claims.

6. On 25 April 2017 the representative informed the Registry that he had been unable to re-establish contact with the applicants.

7. By a letter of 17 May 2017 the Registry acknowledged receipt of the above and notified him that, having regard to the circumstances, the Court would determine whether the applicants had lost interest to pursue the application. He was further requested to keep the Court informed of any further developments.

8. The representative did not respond to the Registry's last letter. No correspondence has been forthcoming from the applicants either.

THE LAW

9. The Court considers that, in these circumstances, the applicants may be regarded as no longer wishing to pursue their application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 1 February 2018.

Anne-Marie Dougin	Erik Møse
Acting Deputy Registrar	President